



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2313: technical correction; school district boards

GRESS FLOOR AMENDMENT

1. Removes language that declares a teacher who violates the prohibition on striking or engaging in an organized work stoppage forfeits any rights, benefits or privileges that accrue as a result of *former employment* by a school district or charter school.

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2313
(Reference to EDUCATION S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:
2 Strike everything after the enacting clause and insert:
3 "Section 1. Title 15, chapter 5, article 1, Arizona Revised
4 Statutes, is amended by adding section 15-504.01, to read:
5 15-504.01. Strikes and organized work stoppages; prohibition;
6 remote instruction; funding; appeal; definition
7 A. NOTWITHSTANDING ANY OTHER LAW, ANY TEACHER WHO IS EMPLOYED BY A
8 SCHOOL DISTRICT OR CHARTER SCHOOL IN THIS STATE MAY NOT STRIKE OR ENGAGE
9 IN AN ORGANIZED WORK STOPPAGE AGAINST THE SCHOOL DISTRICT OR CHARTER
10 SCHOOL. A TEACHER WHO VIOLATES THIS SUBSECTION FORFEITS ALL CIVIL SERVICE
11 RIGHTS, ALL REEMPLOYMENT RIGHTS AND ANY OTHER RIGHTS, BENEFITS OR
12 PRIVILEGES THAT ACCRUE AS A RESULT OF EMPLOYMENT~~[, OR FORMER EMPLOYMENT,]~~
13 BY A SCHOOL DISTRICT OR CHARTER SCHOOL IN THIS STATE.
14 B. SUBSECTION A OF THIS SECTION DOES NOT RESTRICT A TEACHER'S RIGHT
15 TO STOP WORK IF THE TEACHER IS NOT ACTING IN CONCERT WITH ONE OR MORE
16 OTHER INDIVIDUALS IN A STRIKE OR AN ORGANIZED WORK STOPPAGE.
17 C. IF A TEACHER STRIKE OR ORGANIZED WORK STOPPAGE AGAINST A SCHOOL
18 DISTRICT OR CHARTER SCHOOL OCCURS IN VIOLATION OF SUBSECTION A OF THIS
19 SECTION, THE DEPARTMENT OF EDUCATION SHALL CALCULATE THE FOLLOWING FOR
20 EACH SCHOOL DISTRICT AND CHARTER SCHOOL THAT IS AFFECTED:
21 1. THE PERCENTAGE OF THE SCHOOL DISTRICT'S OR CHARTER SCHOOL'S
22 STUDENT COUNT BEFORE THE STRIKE OR ORGANIZED WORK STOPPAGE THAT IS
23 ATTRIBUTABLE TO EITHER:
24 (a) STUDENTS WHO PARTICIPATE IN ONLINE INSTRUCTION PURSUANT TO
25 SECTION 15-808.
26 (b) STUDENTS WHO ARE EDUCATED PURSUANT TO AN INSTRUCTIONAL TIME
27 MODEL THAT IS ADOPTED PURSUANT TO SECTION 15-901.08.
28 2. THE PERCENTAGE OF THE SCHOOL DISTRICT'S OR CHARTER SCHOOL'S
29 STUDENT COUNT DURING THE STRIKE OR ORGANIZED WORK STOPPAGE THAT IS
30 ATTRIBUTABLE TO EITHER:
31 (a) STUDENTS WHO PARTICIPATE IN ONLINE INSTRUCTION PURSUANT TO
32 SECTION 15-808.

1 (b) STUDENTS WHO ARE EDUCATED PURSUANT TO AN INSTRUCTIONAL TIME
2 MODEL THAT IS ADOPTED PURSUANT TO SECTION 15-901.08.
3 3. THE INCREASE, IF ANY, OF THE PERCENTAGE CALCULATED PURSUANT TO
4 PARAGRAPH 2 OF THIS SUBSECTION OVER THE PERCENTAGE CALCULATED PURSUANT TO
5 PARAGRAPH 1 OF THIS SUBSECTION.
6 4. FOR STUDENTS WHO ARE EDUCATED PURSUANT TO AN INSTRUCTIONAL TIME
7 MODEL THAT IS ADOPTED PURSUANT TO SECTION 15-901.08, BOTH OF THE
8 FOLLOWING:
9 (a) THE PERCENTAGE OF INSTRUCTION THAT IS PROVIDED IN A REMOTE
10 SETTING BEFORE THE STRIKE OR ORGANIZED WORK STOPPAGE.
11 (b) THE PERCENTAGE OF INSTRUCTION THAT IS PROVIDED IN A REMOTE
12 SETTING DURING THE STRIKE OR ORGANIZED WORK STOPPAGE.
13 (c) THE INCREASE, IF ANY, OF THE PERCENTAGE CALCULATED PURSUANT TO
14 SUBDIVISION (b) OF THIS PARAGRAPH OVER THE PERCENTAGE CALCULATED PURSUANT
15 TO SUBDIVISION (a) OF THIS PARAGRAPH.
16 D. NOTWITHSTANDING ANY OTHER LAW, IF A TEACHER STRIKE OR ORGANIZED
17 WORK STOPPAGE AGAINST A SCHOOL DISTRICT OR CHARTER SCHOOL OCCURS IN
18 VIOLATION OF SUBSECTION A OF THIS SECTION, THE DEPARTMENT OF EDUCATION
19 SHALL REDUCE THE BASE SUPPORT LEVEL OF THE SCHOOL DISTRICT OR CHARTER
20 SCHOOL AS FOLLOWS:
21 1. BY THE PERCENTAGE CALCULATED PURSUANT TO SUBSECTION C, PARAGRAPH
22 3 OF THIS SECTION.
23 2. BY AN AMOUNT EQUAL TO THE PERCENTAGE CALCULATED PURSUANT TO
24 SUBSECTION C, PARAGRAPH 4, SUBDIVISION (c) OF THIS SECTION MULTIPLIED BY
25 THE PERCENTAGE THAT IS CALCULATED PURSUANT TO SUBSECTION C, PARAGRAPH 1,
26 SUBDIVISION (b) OF THIS SECTION.
27 E. A SCHOOL DISTRICT OR CHARTER SCHOOL MAY APPEAL ANY FUNDING
28 REDUCTION PURSUANT TO SUBSECTION D OF THIS SECTION TO THE STATE BOARD OF
29 EDUCATION.
30 F. FOR THE PURPOSES OF THIS SECTION, "ORGANIZED WORK STOPPAGE"
31 MEANS ANY COLLECTIVE ACTION BY TWO OR MORE TEACHERS TO DO AT LEAST ONE OF
32 THE FOLLOWING:
33 1. FAIL TO REPORT FOR DUTY.
34 2. FAIL TO PERFORM THE TEACHERS' ASSIGNED RESPONSIBILITIES.
35 3. INTERFERE WITH THE PERFORMANCE OF ASSIGNED RESPONSIBILITIES BY
36 ONE OR MORE OTHER EMPLOYEES."
37

38 Enroll and engross to conform
39 Amend title to conform

MATT GRESS

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